

Privacy and Human Rights

Privacy and Human Rights

Privacy as a human right

“No one shall be subjected to arbitrary interference with his privacy, family, home or correspondence, nor to attacks upon his honour and reputation” - Article 12, UN Declaration of Universal Human Rights.

Other articulations

- *Right to be let alone*
- *Preventing personal information accessible to other entities without knowledge and consent*

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Privacy is political.

Privacy is a political right.

Political systems require privacy to function.

We, therefore, need to build technologies accordingly.

- *Privacy is a natural right that allows personal autonomy, while ensuring your democratic freedoms of association and expression.*

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Why do we study privacy?

- To understand what it means to individuals and society. *Remember* it is right and is contextual.
- Ensure that legal frameworks that underpin our democracies support privacy as a right.

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Why do we study privacy?

- Surveillance/Dataveillance
 - Chilling effects.
- Censorship
 - But free speech is a right... a political right.
 - Free media is integral component of a new, developing, or established democracy.
- Influencing people's decision making and behaviour

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Users' Privacy

Users are normally expected to manage their data or online privacy but most can't.

- Jargon language
- Complex systems
- Hidden or lack of mechanisms
- Dark patterns
- Too much work
- Lack of knowledge
- Misplaced mental models
- ...

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User Privacy Theories

Privacy calculus - Individual's intention to disclose personal information is based on risk-benefit analysis.

Privacy paradox - The discrepancy between an individuals' intentions to protect their privacy and how they actually behave in the online marketplace.

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Building to support the right to privacy

Privacy as confidentiality

Privacy as Control

Privacy as Transparency

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Building to support the right to privacy

Privacy as Transparency

Goal: *“informing the user about what data has been or can be collected, how it is processed and for what purpose.”*

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Building to support the right to privacy

Privacy as Transparency

Goal: “informing the user about what data has been or can be collected, how it is processed and for what purpose.”

Transparency includes...

- Being open and clear about what data is collected
- The purpose for collecting that data
- Who is collecting the data and who will have access to the data
- The period the data will be stored (Retention period)
- When and how the data will be deleted

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Examples

- Privacy policies
- Transparency reports
- Pop-up notices
- Privacy labels

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Privacy as Control

Goal: *“provide the user with means (mechanisms) to decide what information they will expose.”*

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Privacy as Control

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Mechanisms to control ...

- What data to share or can be collected
- What data can be processed
- Who can access the data
- Deletion or how data can be deleted

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Examples

- Consent forms
- Privacy settings

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Privacy as Confidentiality

Goal: “Hide data or information from adversary or unauthorised personnel”

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Privacy as Confidentiality

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Hide data when ...

- It is in transit (moving from one place to another)
- It is being processed
- It is at rest

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Privacy as Confidentiality

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Hide data when ...

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Example

- Encryption
- Obfuscation
- Anonymisation

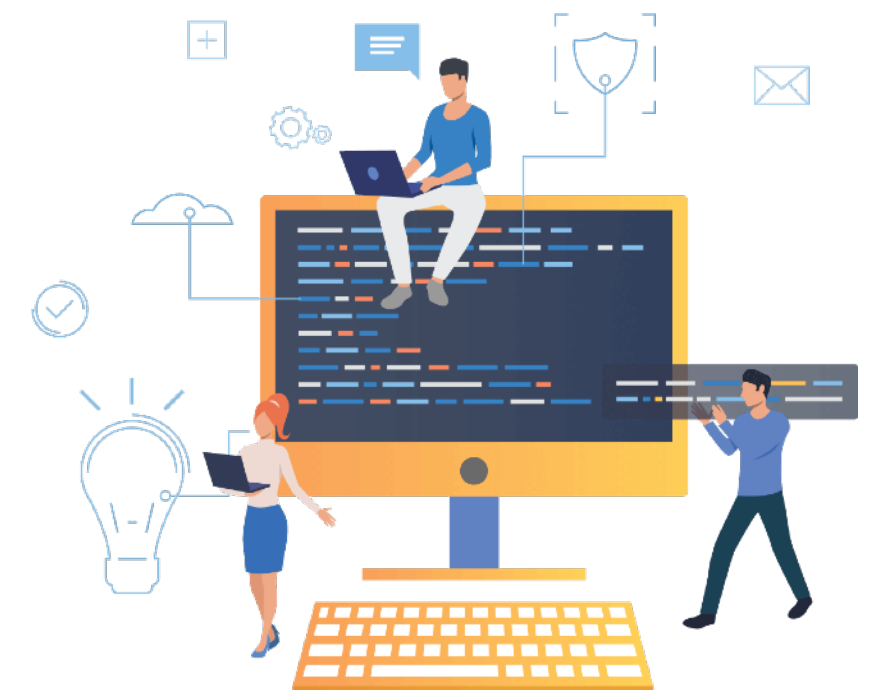
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Developers and User Privacy

Developers are normally excluded when it comes to issues of **user privacy**, in fact, they are usually **blamed** for **privacy violations**.

Misconceptions about developers

- Developers know everything and they know what is needed.
- Privacy is a regulatory problem, not a concept that developers should consider.
- Developers can easily interpret privacy regulations.
- Privacy mechanism are easy to implement.
- Users have the same privacy needs.
- Developers value privacy.
- Complying with privacy requirements and regulation is easy.



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Challenges around implementing privacy

- Interpretation of regulations: Most developers do not understand the requirements of regulations.
- Implementation of regulations: It is not a straightforward process to implement privacy.
- Multi jurisdictional constraints (e.g., GDPR, CCPA are region specific): Developers need to consider a lot of regulations to ensure privacy.
- Unusable APIs and Frameworks: Privacy APIs and Frameworks are not easily available and not usable in most cases.
- Unusable tools: Most tools designed or created to implement privacy are unusable.
- **Skills and qualifications**: Most developers do not have the skills and knowledge about security and privacy.
- Misplaced Mental models: Developers understand privacy different and sometimes have misconceptions about what it means and its requirements.
- Shifting responsibilities: There is a confusion over who should ensure privacy compliance, developers or regulators



Further Reading

- ***Bugs in our pockets: The risks of client-side scanning*** <https://arxiv.org/pdf/2110.07450.pdf>
- ***CyBOK: Privacy and Online rights*** https://www.cybok.org/media/downloads/Privacy_Online_Rights_v1.0.2.pdf
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Group Work

In August 2021, Apple proposed the first production Client-Side Scanning system, which had the potential to be deployed at global scale and installed in more than a billion Apple devices. Apple's proposal was primarily intended to detect CSAM using an on-device detection component that works with Apple servers using cryptographic protocols. Apple designed the scanning components to operate on photos stored in the Camera Roll (the device photo library) only when the "iCloud Photos" cloud synchronisation service is turned on.

In your groups, research about this proposal and prepare a short presentation answering the following questions:

- **what was the proposal about?**
- **What problem was Apple trying to solve?**
- **Whose power is increased by this proposal? Power to do what?**
- **Whose power is decreased in this proposal? Power to do what?**
- **Do you think client-side scanning poses an unacceptable threat to privacy? Why or why not?**

